

## 25STLC04788 25STLC04788

County: los-angeles

Division: Civil Law and Motion

Department: 26

Hearing date: 2026-09-17

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Case Number: 25STLC04788 Hearing Date: September 17, 2026 Dept: 26

### TENTATIVE RULING:

#### Plaintiff

American Contractors Indemnity Company's Motion to be Deemed Prevailing and for Attorneys' Fees and Costs is granted in the amount of \$4,562.50 attorney's fees and \$1,445.15 costs.

#### Analysis:

Plaintiff American Contractors Indemnity Company

("Plaintiff") filed the instant action against Defendants Umar Ali (erroneously sued as Umar Ali aka Ali Umar) ("Defendant Ali") and R U Trucking ("Defendant R U Trucking") on June 20, 2025. Defendant Ali filed an Answer to the Complaint on August 18, 2025. Following Defendant R U Trucking's failure to file a response, the Court entered its default on August 21, 2025.

Plaintiff's Motion to Deem Requests for Admissions Admitted, and Request for Monetary Sanctions was granted against Defendant Ali on January 27, 2026. (Minute Order, 01/27/26.) On March 3, 2026, Plaintiff filed a Motion for Summary Judgment. The Court granted the Motion for Summary Judgment on June 2, 2026 and entered judgment and default judgment against Defendants Ali and R U Trucking, respectively, on July 6, 2026.

Plaintiff filed and served the instant Motion to Be Deemed Prevailing Party and for Award of Attorneys' Fees on June 16, 2026. Plaintiff filed a Notice of No Opposition on September 10, 2026. No opposition has been filed to date.

#### Discussion

Plaintiff moves for an award of attorney's fees in the amount of \$5,562.50 pursuant to Code of Civil Procedure sections 1032 and 1033.5, and Civil Code section 1717. Plaintiff also seeks costs of \$1,445.15, as set forth in its memorandum of costs, also filed on June 16, 2026. A prevailing party is entitled to recover costs, including attorney's fees when authorized by contract. (Code Civ. Proc., § 1032, subd. (a)(4); § 1033.5, subd. (a)(10)(A).) Civil Code section 1717 provides that attorneys' fees and costs shall be awarded to the prevailing party in an action on a contract, where the contract specifically provides for attorney's fees and costs. (Civ. Code, § 1717, subd. (a).)

A motion for attorney's fees must be filed and served within the time for filing a notice of appeal under Cal. Rules of Court Rule 8.822. (Cal. Rules of Court Rule 3.1702(a).) Cal. Rules of Court Rule 8.822 states that an appeal must be filed within either (1) 30 days after service of the notice of entry of the judgment; or (2) 90 days after entry of the judgment. (Cal. Rules of Court 8.822(1).) The instant Motion was timely filed after the hearing on the Motion for Summary Judgment, but before entry of judgment.

It is undisputed that Plaintiff is the prevailing party in this action, as the party in whose favor summary judgment was granted and judgment has been entered. (See Code Civ. Proc., § 1032, subd. (a)(4).) Accordingly, it is entitled to recover its costs under Code of Civil Procedure section 1033.5, subdivision (a). It is also entitled to recover its attorney's fees if such recovery is provided for in the contracts at issue. The parties' contracts require Defendants "[t]o indemnify Surety against all losses, liabilities, costs, damages, attorneys' and consultants' fees and expenses the Surety may incur or has incurred due to the execution and issuance of the bond (Motion, Batoon Decl., Exhs. 1, 2, 3, at ¶12.) Therefore, Plaintiff is entitled to recover its attorney's fees as the prevailing party.

Plaintiff's counsel declares that its attorneys billed their work between \$300.00 and \$375.00 per hour, and the paralegals billed their time at \$175.00 per hour. (Id. at ¶¶12-13 and Exh. 5.) These are reasonable billing rates for attorneys in Southern California with years of experience. (See id. at ¶12.) However, a review of its attached billing records shows that the amounts billed for the first five attorney entries do not match the billing rate and time spent, e.g. 1 hour at \$175.00 is

not \$409.36, as the second entry reads. (Id. at Exh. 5, p. 1.) The Court, therefore, declines to award the \$1,000.00 claimed in those entries. The Court is satisfied with the accuracy of the remaining attorney entries, which mathematically reflect the billing rate and time spent. (Id. at Exh. 5, pp. 1-2.) The Court will not award the additional \$450 requested for reviewing and responding to an opposition, given that one was not filed. (See id., ¶14.) Plaintiff is awarded attorney's fees of \$4,562.50.

Finally, Plaintiff seeks the costs of \$1,445.15 set forth in its Memorandum of Costs filed on June 16, 2026. As no motion to tax or strike costs has been filed by the 15-day deadline, the costs are also granted. (See Cal. Rules of Court, rule 3.1700(b)(1).)

#### Conclusion

Based on the foregoing, Plaintiff American Contractors Indemnity Company's Motion to be Deemed Prevailing and for Attorneys' Fees and Costs is granted in the amount of \$4,562.50 attorney's fees and \$1,445.15 costs.

Moving party to give notice.